

26NNCV00693 26NNCV00693

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Division: Civil Law and Motion

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Case Number: 26NNCV00693 Hearing Date: June 23, 2026 Dept: P

Tentative Order: The Motion to be relieved as counsel for Plaintiff

is GRANTED

I.

Background

On

January 29, 2026, Plaintiff Efrain Gonzalez Mendoza ("Plaintiff") filed this

action against Defendant Armine Akopyan ("Defendant") asserting causes of

action for negligence and premises liability arising from injuries allegedly

sustained while performing roofing work at Defendant's property located in

Glendale, California.

On May

21, 2026, Plaintiff's counsel, Samer Habbas of the Law Offices of Samer Habbas

& Associates, P.C., filed the instant motion to be relieved as counsel.

Motion is unopposed.

II.

Legal

Standard

The Court may issue an order allowing an attorney to withdraw from representation after notice to the client. (CCP § 284.) The attorney may withdraw from representation if the withdrawal would not result in undue prejudice to the client's interest—i.e., counsel cannot withdraw at a critical point in the litigation. (*Ramirez v. Sturdevant* (1994) 21 Cal. App. 4th 904, 915; see California Rule of Professional Conduct 3-700.)

The Court has discretion to grant or deny a motion to be relieved as counsel, particularly when granting such a motion would cause undue prejudice to the client's interests or result in “an unreasonable disruption of the orderly processes of justice.” (*People v. Ortiz* (1990) 51 Cal. 3d 975, 979.) Furthermore, the Court may deny an attorney's request to withdraw “where such withdrawal would work an injustice or cause undue delay in the proceeding.” (*Mandell v. Superior Court* (1977) 67 Cal. App. 3d 1, 4.)

However, this discretion must be exercised reasonably, balancing the client's right to choose representation with the court's duty to maintain the orderly administration of justice. (*Ibid.*)

In making a motion to be relieved as counsel, the attorney must comply with procedures set forth in Cal. Rules of Court, rule 3.1362. The motion must

be made using mandatory forms:

1. Notice of Motion and Motion to be Relieved

as Counsel directed to the client – (MC-051).

2. Declaration “stating in general terms and without compromising the

confidentiality of the attorney-client relationship” the reasons that the

motion was brought (MC-052).

3. Proposed Order (MC-053).

The forms must be timely filed and served on all parties who have

appeared in the case. If these documents are served on the client by mail,

there must be a declaration stating either that the address where client was

served is “the current residence or business address of the client” or “the

last known residence or business address of the client and the attorney has

been unable to locate a more current address after making reasonable efforts to

do so within 30 days before the filing of the motion to be relieved.” (Cal.

Rules of Court, rule 3.1362(d)(1).)

III.

Discussion

Plaintiff's counsel, Samer Habbas of the Law Offices of Samer Habbas

& Associates, P.C., moves to be relieved as counsel of record for Plaintiff

Efrain Gonzalez Mendoza. Counsel states there has been an irreparable breakdown

in the attorney-client relationship and that Plaintiff would benefit from a change of counsel. Counsel further represents that withdrawal will not prejudice Plaintiff. (MC-052, p.1.)

The motion complies with the procedural requirements of California Rules of Court, rule 3.1362. Counsel filed the required Judicial Council forms—MC-051 (Notice of Motion), MC-052 (Declaration), and MC-053 (Proposed Order). Counsel served Plaintiff at his last known address and confirmed the address within the preceding 30 days by telephone and conversation. A proof of service was also filed reflecting service of the motion papers on Plaintiff and appearing defense counsel. (POS-030.)

No opposition has been filed. A Status Conference Re Mediation Completion is scheduled for May 20, 2027, and trial is currently set for August 24, 2027.

Based on the foregoing, the Court finds good cause to grant the motion to be relieved as counsel of record for Plaintiff Efrain Gonzalez Mendoza.

IV.

Conclusion

and Order

The Court GRANTS the motion to be relieved as counsel, effective upon the filing of proof of service of the signed order on Plaintiff.

Counsel is ordered to give notice.

Dated: June 23, 2026

JARED D. MOSES

JUDGE OF THE SUPERIOR COURT